AGREEMENT AND PLAN OF MERGER

To and among

Cimarron Acquisition Corp.

Cimarron Merger Sub, Inc.

and

ALTA MESA RESOURCES, INC.

(a Delaware corporation)

Dated as of

January 31, 2021

Exhibit 2.1

CONFIDENTIAL

Execution Version

Dated as of January 31, 2021

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Section 1. THE COMMITMENTS AND THE CLOSING; AND PAYMENT

(a) Initial Commitments.

(i) Subject to the terms and conditions hereof, (A) each Lender severally agrees to make a loan to the Borrower (collectively, the "Initial Term Loans") on the Closing Date in an amount not exceeding the Initial Term Commitment of such Lender and (B) the Borrower shall use the proceeds of the Initial Term Loans to (1) pay the Closing Date Cash Consideration, (2) pay the Closing Date Transaction Costs, (3) pay the Closing Date Refinancing Amount, (4) pay the Closing Date Acquisition Costs, (5) pay the Closing Date Fees, (6) pay the Closing Date Expenses, (7) pay the Closing Date Cash Contribution Amount, (8) pay the Closing Date Cash Consideration Amount, (9) pay the Closing Date Cash Consideration Amount, (10) pay the Closing Date Cash Consideration Amount, (11) pay the Closing Date Cash Consideration Amount, (12) pay the Closing Date Cash Consideration Amount,

[illegible]

[illegible]

[illegible]

(b) The Company Group (as defined below) has not violated, nor is any Company Group member in default under (nor does there exist any condition which, with or without the passage of time or the giving of notice, would cause such a violation of or default under) its respective organizational documents, or any material contract, lease, mortgage, bond, note, agreement, obligation, condition, covenant, or instrument to which any Company Group member is a party or by which it or any of its properties or assets is bound (collectively, "Contracts"), or any judgment, order, or decree of any court or governmental agency or other authority having jurisdiction over any Company Group member or any of its properties or assets (collectively, "Orders"), or any statute, rule or regulation applicable to any Company Group member (collectively, "Applicable Laws"), which default or violation of Applicable Laws would individually or in the aggregate have a material adverse effect on the business, properties, assets, operations, results of operations, or financial condition of the Company Group taken as a whole (a "Company Group Material Adverse Effect"), or which would materially and adversely affect the ability of the Company to perform its obligations under this Agreement or the other Transaction Documents (as defined below) or which would materially and adversely affect the validity of the Ordinary Shares, or the ability of the Company to issue the Ordinary Shares in accordance with the terms hereof and thereof, or the ability of the Company to consummate the transactions contemplated by this Agreement or the other Transaction Documents (as defined below) (the foregoing clauses (a) and (b), the "Company Group Material Adverse Effect"). The Company is not in violation of any material term of or in default under any Contract or any Order or Applicable Law, except where such violations and defaults would not individually or in the aggregate have a Company Group Material Adverse Effect. The business of the Company Group is not being conducted in violation of any Order or Applicable Law, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, the Company Group is not in violation of any material term of or is in default under its respective organizational documents or any Contract or any Order or Applicable Law, except where such violations and defaults would not individually or in the aggregate have a Company Group Material Adverse Effect. Any capitalized term used in this Section 3(b) but not otherwise defined herein shall have the meaning ascribed to such term in the Registration Statement.

(c) The execution, delivery and performance of this Agreement, the Warrant Shares Irrevocable Transfer Agent Instructions (as defined below), the Warrants (as defined below) and any other documents or instruments required hereunder or under the Warrants (collectively, the "Transaction Documents") by the Company and the consummation by the Company of the transactions contemplated hereby and thereby (the "Transactions") will not result in a violation of the Company's organizational documents, any Contract or any Order or Applicable Law, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect, nor will such execution, delivery and performance of the Transaction Documents by the Company and the consummation by the Company of the Transactions (i) cause any Company Group member to be in default under any Applicable Laws, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect, (ii) result in the creation or imposition of any material lien, charge or encumbrance on any material property or material asset of any Company Group member pursuant to any Contract or any Order or Applicable Law, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect, or (iii) result in the loss or material impairment of any material right of any Company Group member under any Contract, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, no material consent, approval, authorization or other order of, or qualification with, any governmental authority or other person is required in connection with the execution, delivery and performance of the Transaction Documents by the Company and the consummation by the Company of the Transactions, except (i) such as may be required under the Securities Act of 1933, as amended (the "Securities Act"), the rules and regulations of the Securities and Exchange Commission (the "Commission") thereunder, the rules and regulations of the Nasdaq Capital Market ("Nasdaq") and applicable state securities laws, (ii) such as may be required by the Financial Industry Regulatory Authority ("FINRA"), (iii) such as may be required by any stock exchange or other trading market on which the Ordinary Shares are listed or quoted, (iv) such as may be required by any Applicable Laws, and (v) such as may be required by any Contract or any Order, except, in the case of clauses (iii), (iv) and (v) above, such as shall be obtained or made prior to the Closing Date and such as may be required by any Contract or any Order or Applicable Law, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, no material consent, approval, authorization or other order of, or qualification with, any governmental authority or other person is required in connection with the execution, delivery and performance of the Transaction Documents by the Company and the consummation by the Company of the Transactions, except such as may be required under the Securities Act, the rules and regulations of the Commission thereunder, the rules and regulations of Nasdaq and applicable state securities laws, such as may be required by FINRA, such as may be required by any stock exchange or other trading market on which the Ordinary Shares are listed or quoted, such as may be required by any Applicable Laws, such as may be required by any Contract or any Order, except, in the case of clauses (iii), (iv) and (v) above, such as shall be obtained or made prior to the Closing Date and such as may be required by any Contract or any Order or Applicable Law, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect.

(d) Except as set forth in the Registration Statement, no material consent, approval, authorization or other order of, or qualification with, any governmental authority or other person is required in connection with the execution, delivery and performance of the Transaction Documents by the Company and the consummation by the Company of the Transactions, except such as may be required under the Securities Act, the rules and regulations of the Commission thereunder, the rules and regulations of Nasdaq and applicable state securities laws, such as may be required by FINRA, such as may be required by any stock exchange or other trading market on which the Ordinary Shares are listed or quoted, such as may be required by any Applicable Laws, such as may be required by any Contract or any Order, except, in the case of clauses (iii), (iv) and (v) above, such as shall be obtained or made prior to the Closing Date and such as may be required by any Contract or any Order or Applicable Law, except where such violations would not individually or in the aggregate have a Company Group Material Adverse Effect.

(e) The Company has not taken any action designed to, or which to the knowledge of the Company is likely to have the effect of, terminating the registration of the Ordinary Shares under the Securities Act nor, except as set forth in the Registration Statement, has the Company received any notice that the Commission is contemplating terminating such registration. The Ordinary Shares are registered pursuant to Section 12(b) of the Securities Act and are listed on Nasdaq, and the Company has taken no action designed to, or which to the knowledge of the Company is likely to have the effect of, delisting the Ordinary Shares from Nasdaq, nor has the Company received any notice that Nasdaq is contemplating terminating such listing.

(f) Except as set forth in the Registration Statement, the Company has not, in the twelve (12) months preceding the date hereof, received notice from any trading market on which the Ordinary Shares are listed or quoted to the effect that the Company is not in compliance with the listing or maintenance requirements of such trading market. The Company is in compliance with all such listing and maintenance requirements.

(g) The Ordinary Shares are "eligible securities" for purposes of Rule 506(c) of the Securities Act.

(h) The Company is not, and immediately after the Closing will not be, an "investment company" or an "affiliated person" of, or "promoter" or "principal underwriter" for, an investment company within the meaning of the Investment Company Act of 1940, as amended, and the rules and regulations of the Commission thereunder.

(i) The Company and each member of the Company Group (collectively, the "Company Group Entities") have filed all federal, state and local tax returns and have paid all taxes shown to be due and payable on such returns, and all assessments and demands of any taxing authority that are material in amount, which have become due and payable, to the extent such taxes have been paid without penalties or interest. The Company Group Entities have paid all taxes and other governmental assessments and charges that are material in amount, and have made adequate provisions in the Company's financial statements in accordance with generally accepted accounting principles in the United States ("GAAP") for all taxes and other governmental assessments and charges for all periods as to which the tax liability of the Company Group Entities has not been finally determined or the statute of limitations with respect thereto has not expired, except for such taxes and other governmental assessments and charges that are being contested in good faith and for which adequate provisions in the Company's financial statements in accordance with GAAP have been made. Except as set forth in the Registration Statement, none of the tax returns of the Company Group Entities is currently subject to audit by any taxing authority or other governmental agency.

(j) The Company and each member of the Company Group have all material franchises, permits, licenses, and other authorizations (collectively, "Permits") from governmental authorities or others (collectively, "Authorities") that are material in the conduct of their respective businesses, and such Permits do not contain any material burdensome restrictions or conditions. The Company Group is in compliance with all such Permits, except where the failure to be in compliance would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, none of such Permits contains a material burdensome restriction or condition not generally applicable to companies operating under such Permits. The Company Group has not received any notice from any Authorities that any Authority is considering modification, suspension or cancellation of any Permit. Except as set forth in the Registration Statement, the Company Group has fulfilled and performed all its material obligations with respect to such Permits and no event has occurred which allows, or which, upon notice or lapse of time or both would allow, revocation or termination thereof or results in any other material impairment of the rights of the holder of such Permits. Except as set forth in the Registration Statement, such Permits are fully transferable to the Company and will continue in full force and effect immediately after the Closing hereunder in accordance with their respective terms.

(k) Except as set forth in the Registration Statement, the Company Group has good and marketable title to all real property owned by the Company Group and good and marketable title in all personal property owned by the Company Group, in each case, free and clear of all liens, encumbrances and defects or such title as would be consistent with the conduct of the business of the Company Group in the ordinary course of business. Any real property and facilities held under lease by the Company Group are held by the Company Group under valid, subsisting and enforceable leases of record with such exceptions as are not material and do not interfere with the use made and proposed to be made of such property and facilities by the Company Group.

(l) Except as set forth in the Registration Statement, the Company Group owns or possesses, or can obtain on commercially reasonable terms, all material patents, patent rights, patent applications, licenses, inventions, copyrights, suppliers, customers, trade secrets, knowhow, trademarks, trademark rights, service marks, service mark rights, trade names, trade name rights, and other similar rights and proprietary knowledge (collectively, "Intellectual Property") necessary for the conduct of its business as now conducted and as proposed to be conducted as described in the Registration Statement (collectively, the "Company Intellectual Property"). Except as set forth in the Registration Statement, no material action, suit, proceeding or claim is pending or threatened challenging the validity, scope or enforceability of any Company Intellectual Property or any such Intellectual Property of others, nor is the Company aware of any facts which would form a reasonable basis for such a claim. The Company has not received any notice that the business operations of the Company Group have violated or infringed, or that such business operations, if continued, will violate or infringe, the Intellectual Property of others, and the Company has not entered into any agreements to indemnify any other person for any infringement of Intellectual Property of others. The Company Group has taken reasonable measures to protect the Company Intellectual Property.

(m) Except as set forth in the Registration Statement, there are no contracts, agreements and understandings between the Company and any person granting such person the right to require the Company to file a registration statement under the Securities Act with respect to any securities of the Company owned or hereafter acquired by such person.

(n) Except as set forth in the Registration Statement, there are no material outstanding loans, advances (except normal business advances for business expenses in the ordinary course of business) or guarantees or indebtedness by the Company to or for the benefit of any of the officers or directors of the Company or any of the members of their respective families, except for customary employee benefits made in the ordinary course of business.

(o) Except as set forth in the Registration Statement, the Company Group has insurance covering its assets, operations, personnel, employees, agents, and businesses in such amounts and against such loss, damage, expense and liability as is customary for companies engaged in the business in which the Company Group is engaged. The Company Group has no reason to believe that it will be unable to renew its existing insurance coverage as and when such coverage shall expire or be terminated.

(p) Except as set forth in the Registration Statement, the Company Group is in compliance with all applicable federal, state, local and foreign laws and regulations relating to the protection of human health and safety, the environment or hazardous or toxic substances or wastes, pollutants or contaminants ("Environmental Laws"), except where such failure to be in compliance would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, the Company Group has all permits, authorizations and approvals required under any Environmental Laws and are in compliance with their requirements, except where such failure to be in compliance would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, there are no proceedings that are pending, or that the Company Group has been advised of, concerning the application of Environmental Laws to the Company Group or any of their respective businesses or properties.

(q) Except as set forth in the Registration Statement, the Company Group has not been and is not now an employer subject to the Employee Retirement Income Security Act of 1974, as amended, or the rules and regulations of the Commission thereunder, which might result in any material liability to the Company Group.

(r) The Company Group has not incurred liabilities that would be material to the Company Group on a consolidated basis other than (i) trade payables and accrued expenses incurred in the ordinary course of business consistent with past practice and (ii) liabilities not required to be reflected in the Company's financial statements pursuant to GAAP or required to be disclosed in the Registration Statement. The Company Group has no material contingent obligation which is not disclosed in the Registration Statement.

(s) Except as set forth in the Registration Statement, there are no transactions between the Company Group and any officer, director, shareholder, or other affiliate (collectively, "Affiliates") of the Company Group that are required to be disclosed in the Registration Statement which are not so disclosed. Except as set forth in the Registration Statement, none of the officers and directors of the Company and, to the knowledge of the Company, none of the members of their respective families, has either direct or indirect ownership of, or a material interest in, any competitor, supplier, customer, landlord, tenant, creditor or other material contracting party of the Company Group.

(t) The Company Group has filed all federal, state and local income and franchise tax returns required to be filed through the date hereof which are due and payable, and has paid all taxes due thereon, and has made adequate provision in the Company's financial statements in accordance with GAAP for all taxes and other governmental assessments and charges for all periods as to which the tax liability of the Company Group has not been finally determined or the statute of limitations with respect thereto has not expired, except for such taxes and other governmental assessments and charges that are being contested in good faith and for which adequate provisions in the Company's financial statements in accordance with GAAP have been made. Except as set forth in the Registration Statement, none of the tax returns of the Company Group is currently subject to audit by any taxing authority or other governmental agency.

(u) Except as set forth in the Registration Statement, each of the agreements of the Company Group (collectively, the "Company Agreements") has been duly authorized, validly executed, delivered and entered into by the Company Group and is in full force and effect and is the valid and binding agreement of the Company Group, and, to the knowledge of the Company, the other parties thereto, in accordance with its respective terms, except (i) as may be limited by applicable bankruptcy, insolvency, reorganization, moratorium and other laws of general application affecting enforcement of creditors' rights generally, and (ii) as may be limited by laws relating to the availability of specific performance, injunctive relief or other equitable remedies. None of the Company Agreements contains a material burdensome restriction or condition not generally applicable to companies operating under such Company Agreements. The Company Group has not received any notice from any party to any Company Agreement that such party is considering modification, suspension or cancellation of any Company Agreement. Except as set forth in the Registration Statement, the Company Group has fulfilled and performed all its material obligations with respect to such Company Agreements and no event has occurred which allows, or which, upon notice or lapse of time or both would allow, revocation or termination thereof or results in any other material impairment of the rights of the holder of such Company Agreements. Except as set forth in the Registration Statement, such Company Agreements are fully transferable to the Company and will continue in full force and effect immediately after the Closing hereunder in accordance with their respective terms.

(v) Except as set forth in the Registration Statement, the Company Group has complied with all applicable federal, state, local and foreign laws and regulations relating to the conduct of its business, except where such failure to be in compliance would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, the Company Group has all material licenses, authorizations, consents and approvals required to conduct its business, except where such failure would not individually or in the aggregate have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, the Company Group has not received any notice from any Authorities that any Authority is considering modification, suspension or cancellation of any such license, authorization, consent or approval.

(w) Except as set forth in the Registration Statement, the Company Group has not been and is not now a party to any litigation or other proceeding which, individually or in the aggregate, would have a Company Group Material Adverse Effect. Except as set forth in the Registration Statement, there are no actions, suits, proceedings or investigations against the Company Group or its officers and directors in their capacities as such or against any property or assets of the Company Group which, individually or in the aggregate, would have a Company Group Material Adverse Effect.

(x) Except as set forth in the Registration Statement, the Company Group has not made any material unfavorable change in its accounting practices or any material change in its accounting practices, documents, books and records relating to or affecting its assets or liabilities.

(y) Except as set forth in the Registration Statement, the Company Group has not (i) declared or paid any dividend or other distribution on any capital stock, (ii) purchased or redeemed or paid any sinking fund payments on any capital stock, (iii) incurred any material indebtedness or material liability other than in the ordinary course of business, (iv) sold or otherwise disposed of any material assets, tangible or intangible, other than in the ordinary course of business, or (v) suffered any material damage, destruction or loss, whether or not covered by insurance, which would individually or in the aggregate have a Company Group Material Adverse Effect.

(z) **Internal Controls.** The Company Group has established and is operating disclosure controls and procedures and internal control over financial reporting and other control systems required by applicable laws, rules and regulations that are reasonably expected to materially and adversely affect the Company's ability to timely record, process, summarize and report financial data to those responsible for preparing its filings with the Commission within the time periods specified in the Commission's rules and forms. Except as set forth in the Registration Statement, such disclosure controls and procedures are effective in all material respects to perform the functions for which they were established. The Company is not aware of any material weakness in its disclosure controls and procedures or internal control over financial reporting.

(aa) **Sarbanes-Oxley Act.** The Company Group is in compliance with all applicable provisions of the Sarbanes-Oxley Act of 2002, as amended, and the rules and regulations promulgated thereunder or implementing the provisions thereof ("Sarbanes-Oxley Act"), which are applicable to the Company Group.

(bb) **Foreign Corrupt Practices Act.** Neither the Company Group nor, to the knowledge of the Company, any director, officer, agent, employee or other person acting on behalf of the Company Group has been or is currently subject to any U.S. sanctions administered by the Office of Foreign Assets Control of the U.S. Treasury Department ("OFAC"); and the Company Group will not directly or indirectly use the proceeds of the sale of the Securities hereunder, or lend, contribute or otherwise make available such proceeds to any subsidiary, joint venture partner or other person or entity, for the purpose of financing the activities of any person currently subject to any U.S. sanctions administered by OFAC.

(cc) **Accounting Firm.** The accounting firm of Marcum Asia CPAS LLP (the "Accounting Firm") is a registered public accounting firm with the Public Company Accounting Oversight Board.

(dd) **Sale of Securities in Compliance with Laws.** The sale of the Securities hereunder is exempt from the registration requirements of the Securities Act, and the Company has taken all actions required by applicable state securities laws to sell the Securities to the Investor.

(ee) **Tax Status.** Except as set forth in the Registration Statement, the Company Group has made or intends to make in a timely manner all material elections and other material tax filings and has not taken any material position on any tax matter in any material tax return, material tax elections and other material tax filings that are inconsistent with its status as a corporation for U.S. federal income tax purposes.

(ff) **Ownership of Company Shares.** Except as set forth in the Registration Statement, none of the Company's shareholders, directors or officers, or any of their respective family members or affiliates, beneficially own, directly or indirectly, any material interest in any material vendor, lessor, lessee, customer or material supplier of the Company Group.

(gg) **Company Group Material Adverse Effect.** Except as set forth in the Registration Statement, since the date of the latest audited financial statements included within the Registration Statement, there has not been any Company Group Material Adverse Effect.

(hh) **Dilutive Effect.** The Company understands and is aware that issuance of the Securities will cause dilution to the ownership and interest of the holders of the Company's Ordinary Shares and that the sale of the Securities at a price below the market price of the Company's Ordinary Shares could result in further dilution to the ownership and interest of the holders of the Company's Ordinary Shares. The Company understands and is aware that the number of Ordinary Shares issuable from time to time hereunder may be substantially in excess of the number of Ordinary Shares issuable on the date hereof and that such issuance may result in further dilution to the ownership and interest of the holders of the Company's Ordinary Shares.

(ii) **Disclosure.** The Company Group has provided to the Investor and its agents and counsel all information that the Company Group believes is material to the Company Group and its business and has disclosed all such information in the Registration Statement. The Company Group has not provided to the Investor or its agents or counsel any material non-public information or any information that is reasonably expected to be material to the Company Group and its business which is not disclosed in the Registration Statement. The Company Group understands and confirms that the Investor will rely on the foregoing representations in effecting transactions in securities of the Company.

(jj) **Sarbanes-Oxley Act.** Except as set forth in the Registration Statement, the Company Group is in compliance with all applicable provisions of the Sarbanes-Oxley Act of 2002, as amended, and the rules and regulations promulgated thereunder or implementing the provisions thereof ("Sarbanes-Oxley Act"), which are applicable to the Company Group.

(kk) **Foreign Corrupt Practices Act.** Neither the Company Group nor, to the knowledge of the Company, any director, officer, agent, employee or other person acting on behalf of the Company Group has been or is currently subject to any U.S. sanctions administered by the Office of Foreign Assets Control of the U.S. Treasury Department ("OFAC"); and the Company Group will not directly or indirectly use the proceeds of the sale of the Securities hereunder, or lend, contribute or otherwise make available such proceeds to any subsidiary, joint venture partner or other person or entity, for the purpose of financing the activities of any person currently subject to any U.S. sanctions administered by OFAC.

(ll) **Accounting Firm.** The accounting firm of Marcum Asia CPAS LLP (the "Accounting Firm") is a registered public accounting firm with the Public Company Accounting Oversight Board.

(mm) **Sale of Securities in Compliance with Laws.** The sale of the Securities hereunder is exempt from the registration requirements of the Securities Act, and the Company has taken all actions required by applicable state securities laws to sell the Securities to the Investor.

(nn) **Tax Status.** Except as set forth in the Registration Statement, the Company Group has made or intends to make in a timely manner all material elections and other material tax filings and has not taken any material position on any tax matter in any material tax return, material tax elections and other material tax filings that are inconsistent with its status as a corporation for U.S. federal income tax purposes.

(oo) **Ownership of Company Shares.** Except as set forth in the Registration Statement, none of the Company's shareholders, directors or officers, or any of their respective family members or affiliates, beneficially own, directly or indirectly, any material interest in any material vendor, lessor, lessee, customer or material supplier of the Company Group.

(pp) **Company Group Material Adverse Effect.** Except as set forth in the Registration Statement, since the date of the latest audited financial statements included within the Registration Statement, there has not been any Company Group Material Adverse Effect.

(qq) **Dilutive Effect.** The Company understands and is aware that issuance of the Securities will cause dilution to the ownership and interest of the holders of the Company's Ordinary Shares and that the sale of the Securities at a price below the market price of the Company's Ordinary Shares could result in further dilution to the ownership and interest of the holders of the Company's Ordinary Shares. The Company understands and is aware that the number of Ordinary Shares issuable from time to time hereunder may be substantially in excess of the number of Ordinary Shares issuable on the date hereof and that such issuance may result in further dilution to the ownership and interest of the holders of the Company's Ordinary Shares.

(rr) **Disclosure.** The Company Group has provided to the Investor and its agents and counsel all information that the Company Group believes is material to the Company Group and its business and has disclosed all such information in the Registration Statement. The Company Group has not provided to the Investor or its agents or counsel any material non-public information or any information that is reasonably expected to be material to the Company Group and its business which is not disclosed in the Registration Statement. The Company Group understands and confirms that the Investor will rely on the foregoing representations in effecting transactions in securities of the Company.

(ss) **Sarbanes-Oxley Act.** Except as set forth in the Registration Statement, the Company Group is in compliance with all applicable provisions of the Sarbanes-Oxley Act of 2002, as amended, and the rules and regulations promulgated thereunder or implementing the provisions thereof ("Sarbanes-Oxley Act"), which are applicable to the Company Group.

(tt) **Foreign Corrupt Practices Act.** Neither the Company Group nor, to the knowledge of the Company, any director, officer, agent, employee or other person acting on behalf of the Company Group has been or is currently subject to any U.S. sanctions administered by the Office of Foreign Assets Control of the U.S. Treasury Department ("OFAC"); and the Company Group will not directly or indirectly use the proceeds of the sale of the Securities hereunder, or lend, contribute or otherwise make available such proceeds to any subsidiary, joint venture partner or other person or entity, for the purpose of financing the activities of any person currently subject to any U.S. sanctions administered by OFAC.

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(llll) **Sarbanes-Oxley Act.** Except as set forth in the Registration Statement, the Company Group is in compliance with all applicable provisions of the Sarbanes-O

"Equity Award Cash Consideration" means an amount in cash equal to the sum of (a) the Per Share Cash Amount plus (b) the product of (i) the Exchange Ratio multiplied by (ii) the Parent Stock Price.

"ERISA" means the Employee Retirement Income Security Act of 1974, as amended.

"ERISA Affiliate" means any Person under common control with any of the Acquired Companies within the meaning of Sections 414(b), (c), (m) and (o) of the Code, and the regulations thereunder.

"Exchange Act" means the Securities Exchange Act of 1934, as amended.

"Exchange Agent" has the meaning assigned to such term in Section 1.3(a) of the Agreement.

"Exchange Fund" has the meaning assigned to such term in Section 1.3(a) of the Agreement.

"Exchange Ratio" has the meaning assigned to such term in Section 1.3(a) of the Agreement.

"Exchange Ratio Reduction Amount" has the meaning assigned to such term in Section 1.3(d) of the Agreement.

"Exempt DBO Policy" has the meaning assigned to such term in Section 5.8(c) of the Agreement.

"Exempt Licensed or Cleared Product" means a product (or any component thereof) for which any Acquired Company operates regulatory or restricting reports or imports, including any export control Legal Requirement (e.g., the U.S. International Traffic in Arms Regulations, the U.S. Export Administration Regulations, or any other similar Legal Requirements of other jurisdictions) or contains Legal Requirements.

"Ex-Im" means the Export-Import Bank of the United States.

"Ex-Im Letter" has the meaning assigned to such term in Section 5.18(d) of the Agreement.

"Fund Exercise Date" has the meaning assigned to such term in Section 5.4 of the Agreement.

"Fundamental Representations" has the meaning assigned to such term in Section 7.2(a) of the Agreement.

"Fundamental Sections" has the meaning assigned to such term in Section 7.1(b) of the Agreement.

"Fundamental Uses" has the meaning assigned to such term in Section 5.18(b) of the Agreement.

"Government Contract" means any prime Contract, subcontract or any, tax, teaming agreement, joint venture agreement, strategic alliance agreement, force sharing agreement, or any other agreement, Contract or other arrangement of any kind that is entered into with the federal government, state government, local government, or other governmental entity, authority or instrumentality or political subdivision thereof, or (c) any quasi-governmental, professional association or organization or private Person acting on behalf of a federal government, state government, local government, or other governmental functions or any such exchange or self-regulatory organization.

"Governmental Authority" has the meaning assigned to such term in Section 2.9(c) of the Agreement.

"Hazardous Materials" means any substance, material, element, compound, mixture, solution, and/or waste listed, defined, designated, identified, or characterized by any statute, regulation, or other Legal Requirement of any Governmental Authority to which one of the bases for Liability under any Environmental Law. Hazardous Materials include any substance, element, compound, mixture, solution and/or waste to which exposure is regulated by any Governmental Authority or any Environmental Law, including, but not limited to, any toxic, poisonous, contaminant, hazardous substance (including toxic mold), toxic substance, hazardous waste, special waste, industrial substance or pollutant or any derivative or hydrocarbon thereof, radon, radioactive material, radioactive or asbestos-containing material, urea formaldehyde foam insulation, or petroleum.

"HHS Rule" means the Health Care Reform Anti-Kickback Improvements Act of 1976, as amended.

"In-Market Sales" means, with respect to Exempt Licensed or Cleared Product, all commercial sales and revenuestreating immediately prior to the Effective Time and has a part share exercise price for the Company Common Stock subject to such Company Option that is less than the Equity Award Cash Consideration Amount.

"Indemnified Persons" has the meaning assigned to such term in Section 5.4(a) of the Agreement.

"Information Privacy and Security Laws" means all applicable Legal Requirements relating to the privacy or security of Personal Data, and all applicable Legal Requirements relating to information security, including, HIPAA, the Gramm-Leach-Bliley Act, the Fair Credit Reporting Act, the CCPA/GDPR Act, the E-Government Act, the Federal Information Security Management Act, the Cybersecurity Information Sharing Act of 2015, the Cybersecurity Act of 2018 (and its regulations), state data breach notification Laws and state data security Laws.

"Intellectual Property Rights" means, collectively, all rights in, arising out of, or in connection with, all worldwide intellectual property rights, including the Legal Requirements of any jurisdiction in the world, including rights in and to: (a) patents and applications therefor, invention disclosures and all reissues, divisions, continuations, continuations-in-part, extensions and reexaminations thereof, provisional and continuing provisional applications, requests for continued examination, reexaminations, continuations and continuations-in-part thereof ("Patents"); (b) copyrights and copyright registrations and applications therefor, and all other rights corresponding thereto throughout the world ("Copyrights"); (c) trademarks, service marks, trade dress, trade names and slogans, together with all goodwill associated therewith, and all registrations and applications therefor; (d) trade names, trade dress, designs, business names, DBA names, corporate names, Internet domain names, logos, trademarks and service marks, and any other designations of source or origin, including all goodwill associated therewith or symbolized by any and all foregoing

registrations and applications therefor ("Trademarks"); (e) trade secrets (including, those trade secrets defined in the Uniform Trade Secrets Act, and Confidential Trade Secrets) and all other confidential or proprietary information, including all source code, documentation, processes, technology, formulas, customer lists, business and marketing plans, discoveries, ideas, inventions, and all other confidential or proprietary technical, business, financial, marketing and manufacturing information ("Trade Secrets"); (f) Software; and (g) any similar or equivalent rights to any of the foregoing anywhere in the world.

"IRS" means the Internal Revenue Service.

"IT Systems" means any Software, hardware, network or information technology or computer systems, including any server, workstation, router, hub, switch, data facilities, broadband or other telecommunications equipment or capacity, wireless equipment, and all Software.

"Knowledge" has the meaning assigned to such term in Section 8.12(b) of the Agreement.

"Leased Real Property" has the meaning assigned to such term in Section 2.7(a) of the Agreement.

"Leases" has the meaning assigned to such term in Section 2.7(a) of the Agreement.

"Legal Proceeding" means any action, suit, proceeding, claim, arbitration, or investigation, including any civil, criminal, administrative, investigative or appellate proceeding, hearing, claim, inquiry, audit, examination or investigation commenced, brought, conducted or heard by or before any court or other Governmental Body or any arbitrator or arbitration panel.

"Legal Requirement" means any federal, state, local, municipal, foreign or other law, statute, constitution, principle of common law, resolution, ordinance, code, edict, decree, rule, regulation, guidance, order, award, judgment or requirement issued, enacted, adopted, promulgated, implemented or otherwise put into effect by or under the authority of any Governmental Body.

"Liability" means any and all debts, liabilities and obligations, whether fixed or contingent, including any unknown, undisclosed, unmatured, unaccrued, unasserted, contingent, indirect, conditional, implied, vicarious, derivative, joint, several or secondary liability, regardless of whether such debt, obligation, duty or liability would be required to be disclosure on a balance sheet in accordance with GAAP or would be required to be recorded in accordance of whether such debt, obligation, duty or liability is immediate due and payable.

Any statement in Section 2.9 of the Agreement to the effect that any information, document or other material has been "Made Available to Parent" means that such information, document or material was: (a) filed with the SEC and publicly available on EDGAR in unredacted form at least two (2) Business Days prior to the date of the Agreement; or (b) posted to the Company's Intranet site, or uploaded to the Company's data room, at least two (2) Business Days prior to the date of the Agreement, and Parent has been granted access to such Intranet site or data room by the Company with Director in connection with the Merger.

"Merger Consideration" has the meaning assigned to such term in Section 1.3(a) of the Agreement.

"Merger Sub" has the meaning assigned to such term in Section 2.1(b) of the Agreement.

"Merger Sub Stock" has the meaning assigned to such term in Section 2.1(b) of the Agreement.

"Material Adverse Effect on Parent" means any effect, change, development, event or circumstance that, considered individually or together with all other effects, changes, developments, events and circumstances, has had or would, or would reasonably be expected to have, a material adverse effect on the business, financial condition operations or financial performance of the Parent Entities, taken as a whole; provided, however, that, for purposes of this clause (a), any effect, change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any of the following shall not be deemed to constitute, or be taken into account in determining whether a Material Adverse Effect on Parent has occurred or would reasonably be expected to occur: (i) changes in the United States or foreign economies or securities markets, credit, foreign exchange or capital market conditions in the United States or in other locations in which the Parent Entities have material operations, or the worsening of such conditions existing as of the date hereof; (ii) changes in GAAP or applicable Legal Requirements or changes in the rules and regulations of, or in the interpretation by, any Governmental Authority or any quasi-governmental entity, including any changes in the rules and regulations of, or in the interpretation by, the Nasdaq Stock Market, that, in each case, are not specifically relevant to any such change in stock price or trading volume that are not otherwise excluded from this definition of "Material Adverse Effect on Parent" may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or would reasonably be expected to occur); (iii) the failure of Parent to meet internal or securities analysts' published projections of earnings or revenues (it being understood, however, that the facts or circumstances giving rise or contributing to such failure may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur); (iv) changes in the stock price or trading volume of the Company Common Stock (it being understood, however, that the facts or circumstances giving rise or contributing to such change may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur); (v) changes in the stock price or trading volume of the Company Common Stock (it being understood, however, that the facts or circumstances giving rise or contributing to such change may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur); (vi) changes in the stock price or trading volume of the Company Common Stock (it being understood, however, that the facts or circumstances giving rise or contributing to such change may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur); (vii) any change, development, event or circumstance that is generally applicable to companies in the U.S. or any other country in the world in which the Acquired Companies have material operations, or acts of war, sabotage, acts of armed hostilities or terrorism (including cyber terrorism) that occur in the U.S. or in other locations in which the Acquired Companies have material operations, or the worsening of such conditions existing as of the date hereof; (viii) acts of God, earthquakes, hurricanes, tornadoes, tsunamis, floods, fires, epidemics, pandemics, or other natural disasters or calamities that occur in the U.S. or in other locations in which the Acquired Companies have material operations, or the worsening of such conditions existing as of the date hereof; (ix) the negotiation, execution, delivery, announcement or pendency of the Agreement or the anticipated consummation of the Merger, including by reason of the identity of the Company and changes in customer, supplier, distributor, licensee, licensor, partner or similar or other business relationships resulting from the Merger (provided that the exceptions in this clause "(ix)" will not apply with respect to the representations and warranties contained in Section 3.2(b) of the Agreement); (x) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any Legal Proceeding commenced or threatened against, or otherwise relating to, the Parties or any of their respective directors or officers in their capacity as such with respect to the Agreement or the Merger (provided that the exceptions in this clause "(x)" will not apply with respect to the representations and warranties contained in Section 3.2(b) of the Agreement); (xi) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any failure to take action, in each case, that Parent has expressly in approval in writing after the date of the Agreement; provided, that the exceptions in this clause "(xi)" will not apply with respect to (x) and (y) and shall not apply with respect to any such failure that are not otherwise excluded from this definition of "Material Adverse Effect on the Company" may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur; (xii) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any change, development, event or circumstance that is generally applicable to companies in the industries in which the Parent entities operate, in which case such change, development, event or circumstance may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur.

"Material Adverse Effect on the Company" means any effect, change, development, event or circumstance that, considered individually or together with all other effects, changes, developments, events and circumstances, has had or would, or would reasonably be expected to have, or would reasonably be expected to have, a material adverse effect on the business, financial condition operations or financial performance of the Parent Entities, taken as a whole; provided, however, that, for purposes of this clause (a), any effect, change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any of the following shall not be deemed to constitute, or be taken into account in determining whether a Material Adverse Effect on the Company has occurred or would reasonably be expected to occur: (i) changes in the United States or foreign economies or securities markets, credit, foreign exchange or capital market conditions in the United States or in other locations in which the Parent Entities have material operations, or the worsening of such conditions existing as of the date hereof; (ii) changes in GAAP or applicable Legal Requirements or changes in the rules and regulations of, or in the interpretation by, any Governmental Authority or any quasi-governmental entity, including any changes in the rules and regulations of, or in the interpretation by, the Nasdaq Stock Market, that, in each case, are not specifically relevant to any such change in stock price or trading volume that are not otherwise excluded from this definition of "Material Adverse Effect on Parent" may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur); (iii) the failure of Parent to meet internal or securities analysts' published projections of earnings or revenues (it being understood, however, that the facts or circumstances giving rise or contributing to such failure may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur); (iv) changes in the stock price or trading volume of the Company Common Stock (it being understood, however, that the facts or circumstances giving rise or contributing to such change may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur); (v) changes in the stock price or trading volume of the Company Common Stock (it being understood, however, that the facts or circumstances giving rise or contributing to such change may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur); (vi) any change, development, event or circumstance that is generally applicable to companies in the U.S. or any other country in the world in which the Acquired Companies have material operations, or acts of war, sabotage, acts of armed hostilities or terrorism (including cyber terrorism) that occur in the U.S. or in other locations in which the Acquired Companies have material operations, or the worsening of such conditions existing as of the date hereof; (vii) acts of God, earthquakes, hurricanes, tornadoes, tsunamis, floods, fires, epidemics, pandemics, or other natural disasters or calamities that occur in the U.S. or in other locations in which the Acquired Companies have material operations, or the worsening of such conditions existing as of the date hereof; (viii) the negotiation, execution, delivery, announcement or pendency of the Agreement or the anticipated consummation of the Merger, including by reason of the identity of Parent and changes in relationships with customers, suppliers, distributors, licensees, licensors, partners or similar or other business relationships resulting from the Merger (provided that the exceptions in this clause "(viii)" will not apply with respect to the representations and warranties contained in Section 3.2(b) of the Agreement); (ix) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any Legal Proceeding commenced or threatened against, or otherwise relating to, the Parties or any of their respective directors or officers in their capacity as such with respect to the Agreement or the Merger (provided that the exceptions in this clause "(ix)" will not apply with respect to the representations and warranties contained in Section 3.2(b) of the Agreement); (x) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any failure to take action, in each case, that Parent has expressly in approval in writing after the date of the Agreement; provided, that the exceptions in this clause "(x)" will not apply with respect to (x) and (y) and shall not apply with respect to any such failure that are not otherwise excluded from this definition of "Material Adverse Effect on the Company" may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur; (xi) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any change, development, event or circumstance that is generally applicable to companies in the industries in which the parent entities operate, in which case such change, development, event or circumstance may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur.

"Material Adverse Effect on the Company" means any effect, change, development, event or circumstance that, considered individually or together with all other effects, changes, developments, events and circumstances, has had or would, or would reasonably be expected to have, or would reasonably be expected to have, a material adverse effect on the business, financial condition operations or financial performance of the Parent Entities, taken as a whole; provided, however, that, for purposes of this clause (a), any effect, change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any of the following shall not be deemed to constitute, or be taken into account in determining whether a Material Adverse Effect on the Company has occurred or would reasonably be expected to occur: (i) changes in the United States or foreign economies or securities markets, credit, foreign exchange or capital market conditions in the United States or in other locations in which the Parent Entities have material operations, or the worsening of such conditions existing as of the date hereof; (ii) changes in GAAP or applicable Legal Requirements or changes in the rules and regulations of, or in the interpretation by, any Governmental Authority or any quasi-governmental entity, including any changes in the rules and regulations of, or in the interpretation by, the Nasdaq Stock Market, that, in each case, are not specifically relevant to any such change in stock price or trading volume that are not otherwise excluded from this definition of "Material Adverse Effect on Parent" may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur); (iii) the failure of Parent to meet internal or securities analysts' published projections of earnings or revenues (it being understood, however, that the facts or circumstances giving rise or contributing to such failure may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur); 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(vii) acts of God, earthquakes, hurricanes, tornadoes, tsunamis, floods, fires, epidemics, pandemics, or other natural disasters or calamities that occur in the U.S. or in other locations in which the Acquired Companies have material operations, or the worsening of such conditions existing as of the date hereof; (viii) the negotiation, execution, delivery, announcement or pendency of the Agreement or the anticipated consummation of the Merger, including by reason of the identity of Parent and changes in relationships with customers, suppliers, distributors, licensees, licensors, partners or similar or other business relationships resulting from the Merger (provided that the exceptions in this clause "(viii)" will not apply with respect to the representations and warranties contained in Section 3.2(b) of the Agreement); (ix) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any Legal Proceeding commenced or threatened against, or otherwise relating to, the Parties or any of their respective directors or officers in their capacity as such with respect to the Agreement or the Merger (provided that the exceptions in this clause "(ix)" will not apply with respect to the representations and warranties contained in Section 3.2(b) of the Agreement); (x) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any failure to take action, in each case, that Parent has expressly in approval in writing after the date of the Agreement; provided, that the exceptions in this clause "(x)" will not apply with respect to (x) and (y) and shall not apply with respect to any such failure that are not otherwise excluded from this definition of "Material Adverse Effect on the Company" may be taken into account in determining whether a Material Adverse Effect on the Company has occurred or may reasonably be expected to occur; (xi) any change, development, event or circumstance that, in each case, results from or arises in connection with, or is reasonably expected to result from or arise in connection with, any change, development, event or circumstance that is generally applicable to companies in the industries in which the parent entities operate, in which case such change, development, event or circumstance may be taken into account in determining whether a Material Adverse Effect on Parent has occurred or may reasonably be expected to occur.

"Material Contract" has the meaning assigned to such term in Section 2.9(a) of the Agreement.

"Maximum Premium" has the meaning assigned to such term in Section 5.6(c) of the Agreement.

"Maximum Share Number" has the meaning assigned to such term in Section 5.6(d) of the Agreement.

"Merger Consideration" means, in exchange for shares of Company Common Stock (other than shares which are perfect for, but are in aggregate rights under the DGCL) (a) the shares of Parent Common Stock and the cash consideration such holder is entitled to receive pursuant to Section 1.3(a) of the Agreement, subject to the Exchange Ratio and the Parent Stock Price, and (b) the Equity Award Cash Consideration Amount, subject to the terms of the Agreement, and the dividends or other distributions with respect thereto pursuant to Section 1.3(c) of the Agreement.

"Merger Sub" has the meaning assigned to such term in the preamble to the Agreement.

"Merger" has the meaning assigned to such term in the recitals to the Agreement.

"Mosaicked Information" has the meaning assigned to such term in Section 2.9(e) of the Agreement.

"Nasdaq" means the Nasdaq Global Select Market, or any successor thereto, or any other market or exchange on which the principal U.S. trading market for the Company Common Stock, then "Nasdaq" shall be deemed to mean the principal U.S. national securities exchange registered under the Exchange Act on which the Company Common Stock is then traded.

"Nasdaq Rules" means the rules and regulations of Nasdaq.

"NDPRM Rule" means the National Industrial Security Program Operating Manual, 32 C.F.R. Part 117.

"Open Source Software" means Software that is distributed, conveyed or made available under "open source," "free software" or similar terms, and any Software distributed or made available under any license that (a) is approved by the Open Source Initiative and listed at www.opensource.org/licenses/alphabetical, (b) is a "free software license" or "open source license" as defined by the Free Software Foundation or similar or equivalent, or (c) requires, as a condition of distribution of such Software in source code or object code form, that such Software be disclosed or made available in source code form, or be licensed for the purpose of modification or derivative works to (a) distributable at no or nominal charge.

"Order" means any order, writ, injunction, judgment or decree.

"Out-of-the-Money Option" means a Company Option that is unexpired, unexercised and outstanding immediately prior to the Effective Time and has a per share exercise price for the Company Common Stock subject to such Company Option that is equal to or greater than the Equity Award Cash Consideration Amount.

"Overall Rate Payment" has the meaning assigned to such term in Section 5.7(a) of the Agreement.

"Parent" has the meaning assigned to such term in the preamble to the Agreement.

"Parent 401(k) Plan" has the meaning assigned to such term in Section 6.2(d) of the Agreement.

"Parent Acquisition" means any current or future employee, Contract, broker, advisor, officer, member of the board of directors or managers (or similar body) or other individual service provided of or to Parent or any of its Subsidiaries or any Affiliate of Parent or any of its Subsidiaries.

"Parent Balance Sheet" means the consolidated balance sheet of the Parent and its consolidated Subsidiaries as of October 31, 2021, included in the Company's Annual Report on Form 10K for the fiscal year ended October 31, 2021, as filed with the SEC on December 12, 2021.

"Parent Board" means the Parent Board of Directors.

"Parent Disclosure Schedule" means the disclosure schedule that has been prepared by Parent in accordance with the Agreement Section 8.6 of the Agreement and has been delivered by Parent to the Company on the date of the Agreement.

"Parent Entity" means Parent and its Subsidiaries.

"Parent Equity Plans" means Parent's 2006 Employee Equity Incentive Plan, 2017 Non-Employee Director Equity Incentive Plan, and EMPP.

"Parent ESPP" means Parent's Employee Stock Purchase Plan.

"Parent Listing Date" has the meaning assigned to such term in Section 5.2(a) of the Agreement.

"Parent Management Plan" means an amount equal to the written weighted average trading price of Parent Common Stock on the Parent Stock Exchange for the ten (10) consecutive trading days immediately preceding the Closing Date, multiplied by the Exchange Ratio, plus the aggregate of the stock split, stock dividends, combination, and Company's subject to a stock or criminal liability due to or consistent with the Company's Stock Exchange Ratio.

"Parent Option" means an option to purchase shares of Parent Common Stock from Parent (whether granted by Parent pursuant to the Parent Equity Plans, assumed by Parent in connection with any merger, acquisition or similar transaction or otherwise issued or granted).

"Parent Preferred Stock" has the meaning assigned to such term in Section 2.2(a) of the Agreement.

"Parent PSU" means a restricted stock unit representing the right to receive shares of Parent Common Stock Parent, whether granted by Parent pursuant to the Parent Equity Plans, assumed by Parent in connection with any merger, acquisition or similar transaction or otherwise issued or granted, which shall be subject to the terms and conditions of the applicable Parent Equity Incentive Plan, including performance targets relative to the price of Parent Common Stock as a relative or absolute basis.

"Parent Related Party" has the meaning assigned to such term in Section 7.3(f) of the Agreement.

"Parent RSU" means a Parent restricted stock unit, whether granted, conveyed or made available under "open source," "free software" or similar terms, and any Software distributed or made available under any license that (a) is approved by the Open Source Initiative and listed at www.opensource.org/licenses/alphabetical, (b) is a "free software license" or "open source license" as defined by the Free Software Foundation or similar or equivalent, or (c) requires, as a condition of distribution of such Software in source code or object code form, that such Software be disclosed or made available in source code form, or be licensed for the purpose of modification or derivative works to (a) distributable at no or nominal charge.

"Parent" means Parent.

"Parent Stock" means an option to purchase shares of Parent Common Stock from Parent (whether granted by Parent pursuant to the Parent Equity Plans, assumed by Parent in connection with any merger, acquisition or similar transaction or otherwise issued or granted).

"Parent Stock Exchange" means Nasdaq, but if Nasdaq is no longer the principal U.S. trading market for Parent Common Stock, then "Parent Stock Exchange" shall be deemed to mean the principal U.S. national securities exchange registered under the Exchange Act on which the Parent Common Stock is then traded.

"PCAOB" means the Parent's Certified Public Accountants.

"Personal Data" means (a) information that identifies, or in combination with other information may identify, is linked to, or relates to an individual or household, or is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular individual or "personal data," "personal information," "personally identifiable information," "non-public personal information" or any similar term under applicable Legal Requirements relating to privacy or data security.

"Post-Closing Plans" has the meaning assigned to such term in Section 5.7(a) of the Agreement.

"Pre-Closing Period" has the meaning assigned to such term in Section 5.1(b) of the Agreement.

"Pre-Closing Plans" has the meaning assigned to such term in Section 5.7(a) of the Agreement.

"Price Cap" means the amount of Parent's gross profit in the prior calendar year. For purposes of the Agreement, "Money Rates" section, as the prime rate, as in effect from time to time.

"Principal Stockholders" has the meaning assigned to such term in Section 5.2(b) of the Agreement.

"Process," "Processed," "Processing" means any operation or set of operations performed on data, whether or not by automatic means, such as receipt, collection, access, monitoring, maintenance, creation, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, processing, analysis, transfer, disclosure, dissemination or otherwise making available, alignment or combination, blocking, erasure or destruction.

"Proxy Statement/Prospectus" means the proxy statement/prospectus to be sent to the Company's stockholders in connection with the Company Stockholders' Meeting.

"QualAgr" has the meaning assigned to such term in Section 2.24 of the Agreement.

"Reconsideration Claims Notice" has the meaning assigned to such term in Section 2.9(c)(i) of the Agreement.

"Restricted IP" means all Intellectual Property Rights that are registered, filed or issued with, by or under the authority of any Governmental Body or domain name registrar, including all registrations and applications for Patents, Copyrights and Trademarks and all domain names.

"Revolvers Proceeds" has the meaning assigned to such term in Section 5.3(a) of the Agreement.

"Release" means any emission, spill, release or discharge of any Hazardous Material into the environment, including, pouring, emptying, dumping, disposal, migration, threatened release or release of Hazardous Materials from any source into, through or upon the indoor or outdoor environment.

"Representatives" means directors, officers, other employees, agents, attorneys, accountants, advisors and representatives.

"Resignation Authority" means any Software or any component thereof, (a) Governmental Body, that, at any time during the Pre-Closing Period, requests, asserts or attempts to assert jurisdiction over, or requests, requires or attempts to require from Parent, Merger Sub or the Company a filing or submission relating to Merger or any of the other Transaction Documents.

"Required Company Stockholder Vote" has the meaning assigned to such term in Section 2.22 of the Agreement.

"Residual Shares" has the meaning assigned to such term in Section 5.3(b) of the Agreement.

"Reverse Termination Fee" has the meaning assigned to such term in Section 7.3(d) of the Agreement.

"Sanctioned Country" means any country or territory with which dealings are broadly and comprehensively prohibited by any country or with which such transactions would, Cuba, North Korea, Iran, Syria, the Donetsk, Luhansk and Crimea regions of Ukraine; and the non-Ukrainian government controlled areas of Kherson and Zaporizhzhia of Ukraine).

"Sanctioned Person" means any Person with whom or which transactions or dealings are restricted, prohibited, or sanctionable under any Sanctions, including as a result of: (a) being named on any list of Persons subject to Sanctions, (b) being located, organized, or resident in, or directly or indirectly owned or controlled by, any Sanctioned Country, or (c) being a Person with which any Person that is a citizen, national, or resident of, or is owned or controlled, individuals in the aggregate, by one or more Persons described in (a) or (b).

"Sanctions" means all sanctions, prohibitions and embargoes, Legal Requirements, regulations, decrees, orders, or other acts with the force of law of the United States, the United Kingdom, the European Union or any of its members states, or the United Nations Security Council concerning economic or financial sanctions and trade embargoes.

"Sarbanes-Oxley Act" means the Sarbanes-Oxley Act of 2002, as it may be amended from time to time.

"SEC" means the United States Securities and Exchange Commission.

"Section 409A" has the meaning assigned to such term in Section 2.19(d) of the Agreement.

"Securities Act" means the Securities Act of 1933, as amended.

"Significant Subsidiary" means, with respect to an Entity, any Subsidiary of such Entity that owns assets that constitute or account for 10% or more of the consolidated net revenues, consolidated net income or consolidated assets of such Entity, or any Subsidiary of such Entity that is a material Subsidiary.

"Software" means, collectively, computer software (including APIs, drivers, scripts, and other code), firmware and other code incorporated or embedded in hardware, firmware, or machine readable media, and all versions, updates, upgrades, modifications, enhancements, derivative works, and algorithms, data files or records, compilations, databases, libraries, complilers, tools, user interfaces, manuals and all related specifications and documentation.

"Solicitor" has the meaning assigned to such term in Section 2.23 of the Agreement.

"Source Material" means any software, any software or any component thereof, any hardware, any component design or programming materials, any elements of design or programming, and any related documentation, in each case expressed in source code or other human-readable form.

"Specified Governmental Authority" means any Governmental Authority with which any Acquired Company has, or is required to have, any of its respective Significant Subsidiaries, (b) any business or asset of any Acquired Company that is material to the Acquired Companies, taken as a whole, or (c) any business or asset of any Parent Entity that is material to the Parent Entities, taken as a whole.

"Specified Permission" means the representations and warranties of the Company contained in (a) Section 2.1(a), the first sentence of Section 2.2(b), Section 2.2(c), Section 2.2(d) and Section 2.2(e) of the Agreement, (b) Section 2.3(a) and (d) of the Agreement.

"Standards Organization" has the meaning assigned to such term in Section 2.9(e) of the Agreement.

"Specified RSU" means a restricted stock unit representing the right to receive shares of Company Common Stock, whether granted by the Company pursuant to the Company Equity Plans, assumed by Parent in connection with any merger, acquisition or similar transaction or otherwise issued or granted, which shall be subject to the terms and conditions of the applicable Company Equity Incentive Plan, including performance targets relative to the price of Company Common Stock as a relative or absolute basis.

"Subsidiary" means, with respect to any Entity, any Entity of which such Person directly or indirectly owns or purports to own, beneficially or of record (or equivalent thereof) (a) shares of capital stock or other equity interests (any such Person's shares or other equity interests, a "Subsidiary Equity Interest") of such Entity representing more than 50% of the aggregate voting power of such Entity (without regard to the occurrence of any contingency to the voting power of such Entity) or (b) shares of capital stock or other equity interests (any such Person's shares or other equity interests, a "Subsidiary Equity Interest") of such Entity representing more than 50% of the aggregate ordinary power of such Entity (without regard to the occurrence of any contingency to the ordinary power of such Entity) or (c) Subsidiary Equity Interests in such Entity which such Person is entitled to receive upon the dissolution of such Entity, or (d) Subsidiary Equity Interests in such Entity which such Person is entitled to receive upon the occurrence of any contingency to any other dividends or other distributions in respect of such Entity, or (e) Subsidiary Equity Interests in such Entity which such Person is entitled to receive upon the occurrence of any contingency to any other dividends or other distributions in respect of such Entity, or (f) Subsidiary Equity Interests in such Entity which such Person is entitled to receive upon the occurrence of any contingency to any other dividends or other distributions in respect of such Entity, or (g) Subsidiary Equity Interests in such Entity which such Person is entitled to receive upon the occurrence of any contingency to any other dividends or other distributions in respect of such Entity, or (h) Subsidiary Equity Interests in such Entity which such Person is entitled to receive upon the occurrence of any contingency to any other dividends or other distributions in respect of such Entity, or (i) Subsidiary Equity Interests in 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